

HE Green Paper: response to question 19

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This post is part of an [ongoing series](#) where I intend to develop my full *personal* (not institutional) response to the HE Green Paper. Comments are welcome to refine this.

The Green Paper asks in Question 19:

Do you agree with the proposal for a single, transparent and light touch regulatory framework for every higher education provider? Please give reasons for your answer, including how the proposed framework would change the burden on providers. Please quantify the benefits and/or costs where possible.

Point 18 on page 60 of the Green Paper states that “Alongside reforming the system architecture, the Government proposes to put in place a new single, transparent and light touch regulatory system”. Yet, the majority of this Paper is dedicated to introducing a differentiated, burdensome, centralised and bureaucratic regulatory system: the TEF. Simply housing multiple complex exercises under a single body does not make the system any more “light touch” than before.

Furthermore, there is also a conflict between two parts of the proposed regulatory system.

Paragraph 19 on page 60 states that “The existing regulatory framework does not provide a level playing field for new providers” and so, as per paragraph 20, it is expected that “the OfS would operate a single, transparent regulatory framework”. However, it is also proposed that in order “to reduce the burden of monitoring, the OfS would be required to publish a risk based regulatory framework limiting monitoring for low risk providers” (para 21). If some providers are deemed very low risk (assuming that very established universities fall under this category) while others are

not, then there is no single system. Some institutions will be subject to increased regulation while others are deregulated. The risk register also carries the risk of reputational consequence, which may affect recruitment and therefore jeopardise some institutions.